

Case	Title / Nature of Case
9:00 AM Line 1 24-CIV-00269	HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Doe Defendants' Special Motion to Strike Plaintiff's First Amended Complaint (C.C.P. § 425.16)

TENTATIVE RULING:

Defendants Carol DePond, Aragon Management, LLC, Susan V. Chamberlain, John Claassen, and Claassen Law Corp. - Defendants' law firm (hereinafter the "Doe Defendants") special motion to strike Plaintiff Hamid Khazaeli's ("Plaintiff") First Amended Complaint ("FAC") as to the Doe Defendants and Fictitious Name Amendments one through five pursuant to Code of Civil Procedure section 425.16 is GRANTED.

Doe Defendants' request for judicial notice of Exhibits A through G, below, is GRANTED. (Evid. Code § 452, subd. (d).)

- **Exhibit A** Plaintiff's February 17, 2026 First Amended Complaint for Damages (Case No. 25CIV07539)
- **Exhibit B** The Court's July 29, 2020 Order Denying Plaintiff's Motion for a New Trial
- **Exhibit C** January 16, 2025 Remittitur and Excerpts of Opinion for the 6th District Court of Appeal (Case No. H049215)
- **Exhibit D** Plaintiff's Declaration in Support of his Opposition to Defendants' Special Motion to Strike without Exhibits
- **Exhibit E** Declaration of Ali Ezzati in Support of Plaintiff's Opposition to Defendants' Special Motion to Strike
- **Exhibit F** Declaration of Sarkis Sarkisian in Support of Plaintiff's Opposition to Defendants' Special Motion to Strike
- **Exhibit G** Plaintiff's September 3, 2024 Supplemental Declaration with his attached Administrative Complaint

A. Background

This is an employment action involving allegations against Former NT (now dissolved) arising from plaintiff's employment with them from over a decade (nearly 13 years) ago. Plaintiff never worked for the new Notify defendant (no longer operating) or the other individual defendants. The underlying action for FEHA-based discrimination and retaliation is against three individual non-employers who testified for the defense at a 2020 in one of his prior lawsuits.

The Doe Defendants bring the instant special motion to strike, also known as an “Anti-SLAPP motion” pursuant to Code of Civil Procedure section 425.16, on the basis that the challenged speech was a protected activity and plaintiff does not and cannot establish the necessary probability that he will prevail on either cause of action raised in the FAC. Plaintiff specially appeared in opposition only to challenge the proof of service as improper because he, a pro se litigant, was only served electronically. However, the Court registry demonstrates proof of written notice by mail upon plaintiff’s service address of record, as filed with this Court on July 28, 2026. Notably, plaintiff’s special opposition expressly does **not** address the merits of the motion. (Special Opp. p. 2.)

B. Legal Standard

Code of Civil Procedure, section 425.16 provides that “[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., 425.16, subd. (b)(1); *Hastings Coll. Conservation Comm. v. Faigman* (2023) 92 Cal.App.5th 323, 330.) “A special motion to strike is a procedural remedy to dispose of lawsuits brought to chill the valid exercise of the constitutional right of petition or free speech.” (*Chitsazzadeh v. Kramer & Kaslow* (2011) 199 Cal.App.4th 676, 681-682.) “The purpose of the anti-SLAPP statute is to encourage participation in matters of public significance by allowing defendants to request ‘early judicial screening’ of claims targeting free speech or petitioning activities.” (*Wittenberg v. Bornstein* (2020) 50 Cal.App.5th 303, 311 (*Wittenberg*), quoting *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 887; Code Civ. Proc., 425.16, subd. (a).)

Litigation of an anti-SLAPP motion involves a two-step, burden-shifting process. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 (*Bonni*).) “First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ Second, for each claim that does arise from protected activity, the plaintiff must show the claim has ‘at least ‘minimal merit.’ ” (*Ibid.*, citing *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1061 (*Park*).) In order to satisfy the “arising from” requirement of section 425.16, defendants must demonstrate that the protected activity comes within one of the four categories set forth in section 425.16, subdivision (e). (*Park, supra*, 2 Cal.5th, at p. 1063.) An “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law...” (Code Civ. Proc. § 425.16, subd. (e)(2).)

When assessing prong one, courts “consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Bonni, supra*, 11 Cal.5th at p. 1009.) The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. (*Ibid.*) Once the moving party meets its burden on prong one, the burden shifts to plaintiff to establish the second prong, a probability that he will prevail on the claims asserted. (Code Civ. Proc., 425.16, subd.

(b), *Durkin v. City and County of San Francisco* (2023) 90 Cal.App.5th 643, 651 (*Durkin*), citing *Baral v. Schnitt* (2016) 1 Cal.5th 376, 381-382 (*Baral*).) “If the plaintiff cannot make this showing, the court will strike the claim.” (*Bonni, supra*, 11 Cal.5th at p. 1009, citing *Park, supra*, 2 Cal.5th at p. 1061.)

C. Discussion

First Prong: Protected Speech Activity (Defendants’ Burden)

“Anti-SLAPP motions may only target claims ‘arising from any act of [the defendant] in furtherance of the [defendant’s] right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue....’ (§ 425.16, subd. (b).)” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062.) Relevant here, Code of Civil Procedure section 425.16, subdivision (e) includes “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law” as an act in furtherance of speech or petition rights. Thus, the speech at issue in the complaint – the Doe Defendants’ “false testimonies at trial in or about winter 2020” (FAC ¶ 29), communications during trial, and related litigation conduct as well as the vicarious and agency allegations connecting the Doe Defendants’ to protected trial conduct and representation activities in litigation since 2017 (FAC ¶ 7) – fall squarely within the parameters of the statute as oral statements in a judicial proceedings. (See also *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 [disclosures to attorneys and witnesses are also protected activity because they were made to prepare for and in anticipation of litigation. are protected activity].)

Second Prong: Probability of Success on Merits (Plaintiff’s Burden)

Once the moving party meets its initial burden, the burden shifts to the opposing party to establish a probability that it will prevail on its claim. (*Simpson Strong-Tie Co., Inc. v. Gore* (2010) 49 Cal.4th 12, 21.) To satisfy the burden on the second prong, plaintiff must present admissible evidence to substantiate a legally sufficient claim and make a prima facie factual showing sufficient to sustain a favorable judgment. (*Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 42 (*Newport*).) “ ‘The anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity.’ ” (*Ibid.*)

This step has been described as a “ ‘summary-judgment-like procedure.’ [Citation].” (*Newport*, 23 Cal.App.5th, p. 42.) When reviewing this prong, the court does not weigh evidence or resolve conflicting factual claims but evaluates whether the plaintiff’s evidence, accepted as true, demonstrates “minimal merit.” (*Ibid.*) The defendant’s evidence is assessed only to determine if it defeats the plaintiff’s claim as a matter of law. (*Ibid.*, [internal quotations and citations omitted].) Put another way, a plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment....’” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89.)

As argued by defendants, the Court’s analysis *could* end here because plaintiff has not filed a substantive opposition brief (only his special appearance to challenge service) thus plaintiff clearly

does not carry his burden under the second prong. Regardless, **even if plaintiff had filed an opposition brief**, the Court finds plaintiff does not have a substantial probability of success on the merits because it is precluded pursuant to the litigation privilege as alleged by defendants. (See *Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 840 [“A plaintiff cannot show a probability of prevailing on the merits of a cause of action for anti-SLAPP purposes where the cause of action is barred by the litigation privilege....”].)

“The litigation privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action” and to “communications that have some relation to an anticipated proceeding.” (*Herterich v. Peltner* (2018) 20 Cal.App.5th 1132, 1138, *as modified on denial of reh'g* (Mar. 28, 2018) [internal citations omitted].) As stated above, the retaliation cause of action as alleged against these defendants is based entirely on FAC paragraph 29 which baldly states “Defendants retaliated against Plaintiff by providing false **testimonies at trial** in or about winter 2020, refusing to provide job verifications, refusing to hire him because of his protected activity.” (FAC ¶ 29, emphasis added.) Then later, the FAC alleges “Defendants’ acts were malicious, oppressive or fraudulent with intent to vex, injury annoy, humiliate and embarrass Plaintiff...” (FAC ¶ 32.) The Court finds these statements are conclusory, unsupported, speculative and, therefore, fall fully short of establishing a sufficient prima facie showing of facts as is required. Accordingly, the Doe Defendants’ special motion to strike the FAC as to the Doe Defendants, and Fictious Name Amendments one through five, is GRANTED.

Having granted the special motion to strike Doe Defendants’ from the FAC, there is no necessity for the Court to rule on defendants’ request in the alternative for an order striking certain allegations from the FAC.¹

Judgement is therefore ordered in favor of Defendants Carol DePond, Aragon Management, LLC, Susan V. Chamberlain, John Claassen, and Claassen Law Corp. against Plaintiff. Therefore, if this tentative is adopted, Defendants are to also file and serve a separate proposed Judgment form.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

¹ 1. Paragraph 7, page 2:18-24. 2. Paragraph 15, page 4:4 (“Defendants’ appeared and provided false testimonies at trial and damaged Plaintiff.”) 3. Paragraph 16, page 4:8-10 (“As a result of Defendants’ false testimonies described herein, Plaintiff was unable to collect on his valid money judgment in the amount of \$5,147,898:00, instead collecting nothing. Defendants also took Plaintiff for employment by their actions since 2013.”) 4. Paragraph 21, page 5:3 (“loss of judgment”) 5. Paragraph 29, page 6:9-10 (“Defendants retaliated against Plaintiff by providing false testimonies at trial in or about the winter 2020”) 6. Paragraph 30, page 6:13 (“loss of judgment”). (NOMM p.1.)

9:00 AM

Line 2

24-CIV-04638 RAMY KAUFLEDER EDEN v. GRAND MARTCO, INC., ET AL

RAMY KAUFLEDER EDEN
GRAND MARTCO, INC.

MICHEL J. MANNING
DONALD J. DOWLING

Plaintiff's Continued Motion to Approve Settlement from September 4, 2026

TENTATIVE RULING:

The Motion for Settlement Approval by Plaintiff Ramy Kaufler Eden ("Plaintiff") was continued from September 4, 2026 to allow Plaintiff to cure two notice and service defects, as noted below. The Motion is now GRANTED.

Prior Issues from September 4, 2026

1. The proof of service that was attached to the Notice of Motion and Motion for Settlement Approval, filed on February 23, 2026, was unsigned. The Motion is required to be served not only on Defendant, but also the Attorney General. (Cal. Code Regs, tit. 11, § 3008 [in a private Proposition 65 action, motion and supporting papers must be served on the California Attorney General at least forty-five days prior to the hearing on the motion]; Health and Safety Code, § 25249.7, subd. (f)(5) [plaintiff shall serve motion and all supporting papers on the Attorney General, who may appear and participate in a proceeding without intervening in the case].) Plaintiff has now filed a Notice of Continued Hearing Date re Motion for Settlement Approval that does reflect service on Defendant's counsel and on the Attorney General, curing this defect.
2. The original Notice of Hearing also failed to provide the correct date and location of the hearing. However again, Plaintiff has now filed a Notice of Continued Hearing Date re Motion for Settlement Approval that does reflect the correct date and the location of Dept. 20 at the Northern Branch, served on Defendant's counsel and on the Attorney General, curing this defect.

Factual Background

The action arises out of an alleged violation of Proposition 65 ("Prop 65"), which is found at Health and Safety Code section 25249.5 et seq.
